

ENTITLED: “AN ORDINANCE AMENDING THE CHEYENNE UNIFIED DEVELOPMENT CODE (UDC), AS APPROVED BY ORDINANCE NO. 3943 ON JANUARY 23, 2012, TO ADOPT AMENDMENTS IDENTIFIED AS ELECTION AND IDEOLOGICAL SIGN AMENDMENTS FROM THE 2013 ANNUAL REVIEW.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That on December 5, 2011, the Cheyenne Planning Commission unanimously recommended approval of the “Cheyenne Unified Development Code”.

Section 2. That on January 23, 2012, the Governing Body of the City of Cheyenne unanimously approved the Unified Development Code (Ordinance No. 3943) with an effective date of April 30, 2012.

Section 3. That on February 19, 2013, the City of Cheyenne Planning Commission held a public hearing to satisfy the Unified Development Code Annual Review Requirement (ref. UDC 1.1.7).

Section 4. That on October 21, 2013, the Cheyenne Planning Commission recommended approval of the amendments, referred to as Election Sign Fixes.

Section 5. That UDC “Table 6-14: Sign Types” is amended to add a new category called **Election Sign** to be described as **A sign relating to a candidate, issue, proposition, ordinance or other matter to be voted upon by the electors of the city.**

Section 6. That UDC “Table 6-14: Sign Types” is amended to add a new category called **Ideological Sign** to be described as **A sign conveying a philosophical, religious, political, charitable or other similar noncommercial message.**

Section 7. That UDC “Table 6-15: Residential District Sign Allowances” is amended to add a new category called **Election Sign** that includes three bullets:

- **No single sign shall be more than 16 square feet**
- **No quantity restriction per lot**
- **No time limitations except, each election sign shall be removed within ten (10) days after the final election in the election cycle to which the sign pertains.**

Section 8. That UDC “Table 6-15: Residential District Sign Allowances” is amended to add a new category called **Ideological Sign** that includes three bullets:

- **No single sign shall be more than 8 square feet**
- **A maximum aggregate of 20 square feet per lot.**
- **No time limitations**

Section 9. That UDC “Table 6-16: Non-Residential District Sign Allowances” is amended to add a new category called **Election Sign** that includes three bullets:

- **No single sign shall be more than 32 square feet**
- **No quantity restriction per lot**
- **No time limitations except, each election sign shall be removed within ten (10) days after the final election in the election cycle to which the sign pertains.**

Section 10. That UDC “Table 6-16: Non-Residential District Sign Allowances” is amended to add a new category called **Ideological Sign** that includes three bullets:

- **Must comply with all other requirements for signs in nonresidential districts**
- **No quantity restrictions**
- **No time limitations**

Section 11. That UDC Section 6.5.5b(4) is amended to include the words “**and election signs**” after words “temporary signs” and before the comma; and that subsection 6.5.5b(15) is added to read “**Nonilluminated ideological signs in residential districts where the sign is easily placed and removed from the ground or building without needing additional structures, construction or specialized equipment.**”

Section 12. That UDC Section 6.5.7i is amended as follows: “Off-premise signs located on private property, unless **election or ideological or** approved as part of a temporary use permit.”

Section 13. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____